

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN GHANA

Complete Community Opposition How-To

This guide uses the Ghanaian terms and bodies you'll actually run into — the environmental permit and the EIS, the EPA, the public hearing, the aggrieved-person appeal, CHRAJ, stool land — and explains each in plain words the first time. Ghana's environmental law was overhauled in 2025 (the new Environmental Protection Act, Act 1124), so some names and powers have changed; always check the current position.

INTRODUCTION & FRAMEWORK

The **Atewa Range Forest Reserve** rises out of Ghana's Eastern Region — one of the last stretches of upland rainforest in the country, home to more than a hundred species pushed toward extinction, and, above all, the source of three great rivers: the **Densu, the Ayensu, and the Birim**. The water of those rivers reaches **around five million Ghanaians** — the Densu alone fills the reservoir that supplies much of Accra. So when the government, under a multi-billion-dollar barter deal with China, earmarked Atewa to be strip-mined for bauxite, the stakes were not abstract. **Take the mountain off, a national water official warned, and you change the hydrology forever.**

In January 2020, a coalition led by the national environmental organisation **A Rocha Ghana**, joined by other civil-society groups and individual citizens and supported by international lawyers, did what Ghanaian law lets communities do: they took the government to the **High Court**. They argued that mining Atewa would violate their constitutional rights to **life, dignity, and a clean and healthy environment**, and the rights of future generations; that exploration already underway breached the law, because mining is prohibited in protected forest reserves and the required assessments and mineral rights had not been obtained. And they offered an alternative — make Atewa a **national park**, worth more standing than stripped. The case has been long and hard-fought, the government resisting at every turn. But the forest is still standing, the water still flows, and the fight has kept a national-priority project at bay for years — proof of what organised communities, the courts, and constitutional rights can do in one of West Africa's more open democracies.

Now the honest counterweight. Ghana's economy leans heavily on gold and other mining, oil, and big infrastructure, and the state promotes them hard — the EPA has at times signalled it would approve a project because it had the President's backing. Enforcement is uneven and local offices under-resourced. **Customary land is controlled by chiefs and traditional authorities who may themselves benefit from a project.** And the defining crisis, **galamsey — illegal small-scale gold mining — has poisoned rivers, forests, and cocoa farmland, often under political protection, making some fights genuinely dangerous.** Safety runs through this guide.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A large Ghanaian project needs its **environmental permit** from the **EPA** (backed, for the worst, by a full **Environmental Impact Statement**), granted only after public participation and, where concerns are serious, a **public hearing**; a mine needs mineral rights and cannot lawfully proceed in a protected forest reserve; and it must respect constitutional rights any person can defend in the **High Court**. Every one of those is a

link you can grab. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If the project is in or near a protected forest reserve, or lacks its permit or mineral rights, the law genuinely bites** — mining is prohibited in reserves, and an aggrieved person's complaint can trigger the suspension of a permit.
- **If the assessment is flawed or the hearing was skipped, that's a real ground** — and the High Court and constitutional rights are open to you.
- **If it's a national-priority project the state backs, an outright stop is hard** — aim honestly at delay, permit refusal or suspension, conditions, and forcing a genuine assessment and hearing, and — the Atewa lesson — keep the forest standing while you fight. And protect your people, especially near galamsey.

Read the whole guide once before you move. Two habits run through it: **use the rights the law gives you** — the participation, the public hearing, the aggrieved-person appeal, the High Court — and **run every front at once**, safely: the documents, the hearing, the courts, the movement, the press. That's how Atewa has been held.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The core decision is the **environmental permit**, issued by the **EPA** (the Environmental Protection Authority under the 2025 Act), backed for the most damaging projects by a full **Environmental Impact Statement (EIS)**. **Sector regulators** grant mineral rights and other permits, and mining is **prohibited in protected forest reserves**. **Chiefs and traditional authorities** control **stool land** (customary land held in trust for the community). And the **High Court** enforces constitutional rights. Know which decision you can contest, and aim there.

How a Project Moves — and Where You Jump In

Screening, scoping, and the assessment. The EPA screens the project; the worst require a full EIS, prepared with **public participation** at every stage. *Your opening* — *and it arms every later step*: take part, and where the concerns are serious, **demand a public hearing** and put your objections on the record.

The public hearing. For serious projects, the EPA holds a **public hearing**. *Your opening*: make your evidenced case there — it can lead to refusal or conditions.

The permit. The EPA grants or refuses. *Your opening* — *an unusual and powerful one*: an **aggrieved person's** complaint can **trigger the suspension of a permit**, and you have a **right of appeal**.

Construction and operation. *Your opening*: operating without a permit or mineral rights, or in a protected reserve — unlawful, and challengeable in the High Court.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — company records set the exposure. **What it still needs** — the permit not granted or under challenge, the mineral rights not obtained, financing not closed: whatever's missing is the soft spot (Atewa's exploration lacked its permits and rights). **Who's paying** — banks and financiers, and any barter or loan deal whose terms can be scrutinised.

Who's Supposed to Be Watching

Each is an ally or an arena. The **EPA** runs the permit and the hearing and can be pressed. The **High Court** enforces constitutional rights — the Atewa route. The **Commission on Human Rights and Administrative Justice (CHRAJ)** is a powerful watchdog that investigates rights and administrative-justice complaints. The **Lands Commission** and the traditional authorities govern land. The **Auditor-General** examines public money. And Ghana's **active civil society, its environmental organisations, and a genuinely free press** are the forces that reach furthest — the combination that has held Atewa.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether a protected reserve or missing permit is engaged, whether the assessment or hearing was flawed, and how set the state is on the project.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Participation / demanding a public hearing	15–35%	during assessment	low	On record; conditions or a redo
Aggrieved-person complaint (permit suspension)	20–45%	weeks–months	low	Permit suspended; appeal
High Court case (constitutional rights)	30–55%	1–4 yr	low–mod	Project restrained; rights enforced
"Prohibited in a forest reserve" ground	30–55%	varies	low–mod	Mining blocked in a protected reserve
CHRAJ complaint	15–40%	months–yr	low	Findings; pressure
Movement + national/international media	25–50%	months–yr	low	Political cost; project reconsidered
Everything together (reserve/missing permit, world watching)	40–60%	1–4 yr	low–mod	Held off, suspended, delayed, changed
Everything together (national-priority, state-backed)	20–40%	1–4 yr	low–mod	Delayed, conditioned, exposed

The levers that move the needle most are the **High Court on constitutional rights**, the **"prohibited in a forest reserve" ground**, and the **aggrieved-person permit suspension**, backed by the movement and the press. Atewa shows the ceiling — a national-priority mine kept at bay for years, the forest still standing. The honest floor is a state-backed project where a win looks like delay, suspension, conditions, and a forest held while the fight goes on.

On cost and safety: participating, documenting, and organising are cheap, and environmental organisations and public-interest lawyers (with international support) bring the High Court cases. But galamsey areas are genuinely dangerous, and chiefs may benefit from a project — so document safely, protect the vulnerable, and route risk through lawyers, CHRAJ, and the press.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this permit, this reserve, this right — is strong. Answer five questions in writing, safely.

1. What is it, and who's behind it? Name the project, the company, its owners, its financiers (and any barter or loan deal).

2. Where is it, and what does it touch? Get the boundaries and lay them over a **protected forest reserve**, a river and its basin, cocoa farmland, stool land, communities. **A protected forest reserve and a threatened water source are your sharpest levers**, so this map is your most important document — Atewa turned on a reserve and the water of five million.

3. What stage is it at, and what's the next deadline? Is the assessment in participation? Is a public hearing due? Has the permit issued (opening the aggrieved-person appeal)? These openings are time-bound.

4. What does it still need that it lacks? A permit not granted, mineral rights not obtained, financing not closed. The missing piece is the soft spot.

5. Who else is affected, and who already opposes it? Neighbouring communities, farmers, environmental organisations, and — carefully — the traditional authorities. Atewa united communities, national NGOs, and international allies.

What this looks like in real life. A community learns a mine is planned in a forest reserve that feeds its rivers, its exploration already underway without permits. The five questions yield: a company (and a barter deal) behind it; a site in a protected reserve threatening water (the sharp levers); an assessment in process; a project lacking its permits and mineral rights (the soft spot); and a coalition of communities and NGOs. That's the Atewa pattern — invoke the reserve prohibition, demand a hearing, use the aggrieved-person appeal, and take the constitutional case to the High Court.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof. Build it in three layers — safely.

Layer one: the paper trail. Get the documents the decision rests on — the EIS, the environmental permit and its conditions, the mineral rights, the forest-reserve status, the deal terms. Then read the assessment hard for flaws — an understated impact on water or forest, an ignored alternative (like a national park), a skipped hearing, exploration begun without permits (the Atewa breach).

Layer two: the ground truth. Dated, located photographs and video of the site, the forest, the rivers, the farmland — baseline images before any damage most of all — and, carefully, the testimony of affected residents and farmers. Near galamsey, weigh the risk to anyone documenting.

Layer three: the map of reserve, water, and rights. Lay the project over the protected reserve, the rivers and their basin, and cocoa farmland, so each lever — above all the reserve prohibition — is visible. Walking into the High Court or the EPA with the assessment, the permit, and that map is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The EIS, the environmental permit and conditions, the mineral rights, the forest-reserve status, the deal terms** — from the EPA and the sector regulators; force out the rest as needed (8A).
- **Land and stool-land records** — from the Lands Commission and the community's structures.
- **Ownership and financing** — company records and the barter/loan deal.
- **The reserve-water-rights map** — the protected reserve, the rivers and basin, and cocoa farmland, laid over the site.
- **Dated evidence and consented testimony** — photographs marked with date and place, gathered so no one is put at risk.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Atewa's coalition of communities, national NGOs, and international allies has held a mine at bay for years. Build yours in four moves — and safely.

Start with a tight core. The neighbours and farmers most affected, the people who know the forest and rivers, a few tireless organisers, and respected local figures.

Widen the circle — carefully with the chiefs. Pull in the neighbouring communities and farmers. Engage the traditional authorities where they support you — but be clear-eyed that chiefs may benefit from a project, so keep the community's own voice and decisions central.

Bring in the national and international allies — early. Reach Ghana's environmental organisations (like A Rocha Ghana) and public-interest lawyers, with international legal and scientific support. The aggrieved-person mechanism and the High Court are open to communities and NGOs, so a supported coalition can bring a strong case.

Build to last, and safely. Ghanaian fights run for years, and near galamsey they can turn dangerous. Build clear roles, a secure shared archive, a way to decide together, and a plan for the financial, emotional, and physical risks. Take threats seriously, protect the vulnerable, and route danger through lawyers, CHRAJ, and the press.

STEP 4: LEGAL CHALLENGES & CONSTITUTIONAL RIGHTS

Law is one of Ghana's sharpest levers, because the courts enforce constitutional rights and the law prohibits mining in protected reserves.

Participate and Demand a Hearing First

Everything downstream is stronger if you took part in the assessment and, where the concerns are serious, **demand and used the public hearing**. The courts and the EPA weigh that record, so your objections there are the foundation of the challenge.

The Aggrieved-Person Appeal and Permit Suspension

Ghanaian law gives an **aggrieved person** — broad enough to include residents, community groups, and NGOs — a real, unusual power: a complaint can **trigger the suspension of a permit**, and there is a **right of appeal**. Use it. It's a fast administrative lever that can freeze a project while the deeper fight runs.

The High Court, Constitutional Rights, and the Reserve Prohibition

The strongest route is the **High Court**, enforcing the **1992 Constitution's** rights to **life, dignity, and administrative justice** — and, as Atewa argues, a **clean and healthy environment and the rights of future generations**. Two grounds are especially sharp: **mining is prohibited in protected forest reserves**, and a project operating **without its permit or mineral rights** is unlawful. And **CHRAJ** — the human-rights and administrative-justice commission — can investigate and add weight.

The Honest Limits

Straight talk: the courts and the aggrieved-person mechanism are real levers, but litigation is slow, the state backs national-priority projects hard, the EPA can be politically pressured, enforcement is uneven, chiefs may side with the project, and galamsey areas are dangerous. So use the strong tools — the participation and hearing, the aggrieved-person suspension, the High Court, the reserve prohibition, CHRAJ — but pair them with the movement and the press, protect your people, and count a permit refused or suspended, a project held off, delay, conditions, and a forest kept standing as wins alongside an outright stop.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A right becomes a High Court case. Not "the mine is bad" but *"mining Atewa violates our constitutional right to a clean and healthy environment and the rights of future generations — and it is prohibited in a forest reserve."*

A reserve becomes a wall. *"This is a protected forest reserve; mining is prohibited there, full stop."*

A missing permit becomes an injunction. *"Exploration has begun without the required permit and mineral rights — it is unlawful and must stop."*

The harm becomes a national story. *"The forest and the rivers that give five million Ghanaians their water — stripped for bauxite."*

Match it to the venue: the objections to the EPA and the hearing; the aggrieved-person complaint to the permit; the constitutional case and the reserve prohibition to the High Court; the human and the water to the press.

STEP 5: MEDIA STRATEGY

In Ghana, public attention is a real lever — Atewa became a national and international cause, drawing in global voices. A free press and active civil society make the media front central.

Lead with people and place, not procedure. Not "the EIS was deficient" but "the forest and the rivers that give five million Ghanaians their water — stripped for bauxite." Use your strongest material: dated photographs, the map of the project over the reserve and the rivers, the alternative (a national park), and — carefully — human voices.

Work several audiences at once. Local and national press build political pressure; civil society and environmental networks amplify; international media reach the deal's backers and the world's stake in the forest. Make it easy: captioned photos, accurate summaries, a map, strong voices.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And protect people — weigh every public act, especially near galamsey.

EMAILS & LETTERS

Make them your own; keep them factual and calm; keep copies; and protect anyone at risk.

8A — Request for the permit and assessment (to the EPA).

Subject: Request for the EIS and permit documents — [project].

"We, residents of [place], request the EIS, the environmental permit and its conditions, and the mineral rights and forest-reserve status for [project] at [location]. [Contact.]"

8B — Objection / demand for a public hearing.

Subject: Objection and request for a public hearing — [project].

"We, residents of [place], object to [project]: [it lies in a protected forest reserve where mining is prohibited; it threatens our rivers; exploration began without permits]. Given the serious concerns, we request a public hearing. [Attach evidence.]"

8C — Aggrieved-person complaint / appeal (to the EPA).

Subject: Aggrieved-person complaint — [project] permit.

"As aggrieved persons, we complain against the permit for [project], which [is unlawful in a forest reserve / rests on a defective assessment], and ask that it be suspended, and we give notice of appeal. [Attach evidence.]"

8D — To a public-interest lawyer / environmental organisation.

Subject: Request for support — High Court case — [project].

"Our community faces [project] in [a protected forest reserve] threatening [our rivers]. We've gathered [the EIS, the permit, the reserve status, photographs] and believe there are grounds on our constitutional rights, the reserve prohibition, and missing permits. We ask for your help and to work as partners. [Contact and evidence summary.]"

8E — To CHRAJ.

Subject: Complaint — [project] at [location].

"We ask CHRAJ to investigate [project], which [violates our right to a healthy environment / proceeds unlawfully in a forest reserve], and [any harassment of community members]. [Attach evidence.]"

8F — To a financier or the deal's backer.

Subject: Environmental, rights, and legal risk in [project].

"We understand your institution may be [financing / backing] [project] at [location], which [strips a protected forest reserve / threatens the water of millions] and faces active legal challenge. We ask you to weigh this against your own standards. [Contact and evidence summary.]"

8G — Letter to the press.

Subject: [Community] moves to protect [forest / rivers] from [project].

"For generations the people of [place] have depended on [the forest / the rivers] at [location] — the water of millions. Now [project] threatens to strip it. We can provide photographs, documents, a map and — carefully — interviews. [Contact.]"

8H — Rallying the community (safely).

Subject: We can protect our forest and water — here's how.

"[Project] threatens [our forest / rivers]. At Atewa, communities and NGOs took the government to court and have kept a mine at bay for years — the forest still stands. With the public hearing, the aggrieved-person appeal, the reserve prohibition, and the High Court behind us, we have a real chance. Please join us — carefully, protecting one another. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order, and safely:

1. **Nail down the project and its footprint, and look for the reserve and water levers.** A protected forest reserve and a threatened water source are your sharpest.
2. **Take part and demand a public hearing (8B); put your objections on the record.**
3. **Request the permit and assessment (8A); check for exploration begun without permits.**
4. **Photograph everything, with dates and places, safely.**
5. **File an aggrieved-person complaint to suspend the permit (8C), and get a lawyer for the High Court (8D).**
6. **Build the coalition, involve CHRAJ, and go public — internationally too (8E/8G/8H).** Atewa has been held this way.

Even lean, those six use your rights, build the record, hit the reserve and permit levers, and protect your people.

WHEN THE SYSTEM IS TILTED

Ghana's tools are real, but the field is often tilted, and you must plan for it.

When it's a national-priority project. The state and the EPA may back it hard. Don't fold: use the reserve prohibition, the aggrieved-person suspension, and the High Court, keep the coalition alive, and make the

state's backing of an unlawful project at a public and international cost.

When the chiefs benefit. Traditional authorities control stool land and may side with a project. Keep the community's own voice and decisions central, and don't assume the chief speaks for everyone.

When enforcement is weak. A permit refusal or a court order can be ignored on the ground. Pair it with CHRAJ, the press, and sustained pressure to make it stick.

When galamsey makes it dangerous. Illegal mining areas are genuinely dangerous, often with political protection. Take every threat seriously, protect the vulnerable, work through lawyers and CHRAJ, and use national and international attention as protection.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Ghana has serious, documented problems with the capture of permits and mining — galamsey especially — by connected interests, so this matters.

How to spot it. Permits granted against the evidence or on political say-so; an assessment written for the proponent; a hearing skipped or stage-managed; mineral rights or land steered to the connected; benefits to a few while the community carries the harm.

Who's supposed to guard against it. CHRAJ and the **Special Prosecutor** investigate graft and administrative injustice. The **Auditor-General** examines public money. The **High Court** can restrain an unlawful project. And Ghana's **investigative press** has repeatedly exposed captured mining and permits.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Don't make public accusations you can't back; near galamsey they can invite retaliation. Route serious evidence to CHRAJ, the Special Prosecutor, and trusted journalists, protect insiders and witnesses, and pair the exposure with the legal challenge and the public campaign.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your proof; pinning down the reserve and water levers aims it; organising builds the muscle; the aggrieved-person appeal and the High Court press the case; the media raises the cost and protects your people. Together they multiply. One at a time, they stall.

Early on (weeks 1–8): nail down the project, its footprint, and any reserve or water source; take part and demand a hearing; request the permit and assessment; photograph the baseline safely; get a lawyer and build the coalition — carefully with the chiefs.

In the thick of it (months–years): file the aggrieved-person complaint to suspend the permit; bring the High Court case on constitutional rights and the reserve prohibition; involve CHRAJ; open the media front — internationally too.

The long haul (years): carry the case through the courts; keep the coalition and the attention alive; hold the line for a permit refused or suspended, a project held off, delay, conditions, and a forest kept standing — and keep your people safe throughout.

FINAL ASSESSMENT

Stopping a destructive project in Ghana can be done — a coalition of communities and NGOs took the government to court over Atewa and has kept a national-priority bauxite mine at bay for years, the forest still standing and the rivers still flowing. Hold both truths. Ghana's tools are real: an environmental permit and public hearing; an aggrieved-person mechanism that can suspend a permit; a prohibition on mining in protected forest reserves; constitutional rights to life, dignity, and a healthy environment enforceable in the High Court; and CHRAJ. And the constraints are real: a state that promotes mining, a pressurable EPA, weak enforcement, chiefs who may benefit, and the genuine danger of galamsey.

Here's the discipline that wins. Find the reserve prohibition and the water source, and the flaw — the skipped hearing, the exploration without permits — and gather proof. Take part and demand a public hearing. File an aggrieved-person complaint to suspend the permit, and take the constitutional case and the reserve prohibition to the High Court. Build the coalition, involve CHRAJ, carry the story to the nation and the world, and protect your people above all. Count a permit refused or suspended, a project held off, delay, conditions, and a forest kept standing as wins alongside an outright stop. That's what Atewa has done — the communities, the courts, and constitutional rights together. So can you — safely.